

24CHCV03213 24CHCV03213

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 24CHCV03213 Hearing Date: August 21, 2026 Dept: F47

Dept. F47

Date: 8/21/26

TRIAL DATE: 11/16/26

Case #24CHCV03213

MOTION

TO BIFURCATE

Motion filed on 7/9/26.

MOVING PARTY: Plaintiff Ralph

Sasson

RESPONDING PARTY: Defendants

Bernard Collins, Quentin Collins and Armene Voskanyan

NOTICE: ok

RELIEF REQUESTED: An order bifurcating the trial
as follows:

1. Phase One shall be tried first and shall include
liability, affirmative defenses, causation, actual/compensatory damages, and
whether Plaintiff has established entitlement to punitive or exemplary damages
against any defendant, including whether any defendant acted with malice,
oppression, or fraud under Civil Code 3294, and whether any exemplary damage

predicate exists under Civil Code 3340.

2. Phase Two shall occur only if the trier of fact first returns a verdict awarding actual damages and making the required punitive/exemplary damage predicate findings. If Phase Two becomes necessary, the same trier of fact shall remain empaneled and shall hear the punitive/exemplary damages amount phase after completion of the targeted financial condition discovery. The jury shall not be discharged after Phase One unless Phase Two is unnecessary.

3. No evidence of any defendant's profits, net worth, wealth, or financial condition shall be admitted in Phase One unless independently relevant and otherwise admissible by order of the Court.

4. The Court shall reserve determination of the precise timing, manner, scope, and protective order terms governing any Phase Two production or presentation of financial condition evidence.

5. Plaintiff further moves for an order that, if the Phase One trier of fact returns a verdict awarding Plaintiff actual damages and finding, by clear and convincing evidence, that any defendant acted with malice, oppression, or fraud, or otherwise finding an exemplary damages predicate under Civil Code 3340, Plaintiff shall be permitted to conduct targeted, expedited financial condition discovery as to each such defendant for a period not to exceed thirty (30) calendar days before the punitive/exemplary damages amount phase. Such discovery shall be limited to documents and testimony sufficient to establish each such defendant's current profits, net worth, assets, liabilities, income, expenses, and overall ability to pay punitive or exemplary damages, subject to an appropriate protective order and further order of the Court.

RULING: The motion is granted, in part, and denied, in part.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of a dog attack that occurred on 4/25/24 and ensuing confrontations and/or altercations between Plaintiff/former

Cross-Defendant Ralph Sasson (Plaintiff) and Defendants/former Cross-Complainants Quentin (Quentin) Collins, Bernard Collins (Bernard) and Armene Voskanyan (Armene) (collectively, Defendants) occurring on 4/25/24, 4/26/24, 4/27/24 and 7/10/24.

On 9/6/24, Plaintiff filed this action against Defendants for: (1) Strict Liability (Bernard & Armene), (2) Negligence Per Se (Bernard & Armene), (3) Negligence (Bernard & Armene), (4) Trespass to Chattels (Bernard & Armene), (5) Negligent Supervision (Bernard & Armene), (6) Assault I (Quentin), (7) Assault II (Quentin), (8) Battery (Quentin), (9) Trespass to Land (Quentin), (10) Assault (Bernard), (11) Battery (Bernard), (12) Trespass to Land I (Bernard), (13) Trespass to Land II (Bernard), (14) Slander Per Se (Bernard) and (15) Intentional Infliction of Emotional Distress (Bernard & Quentin).

On 10/25/24, Defendants, representing themselves, answered the complaint and filed a cross-complaint against Plaintiff for: (1) Assault, (2) Battery, (3) Intentional Infliction of Emotional Distress, (4) Trespass to Chattel, (5) Trespass to Land, (6) Violation of Ralph Act (Civil Code 51.7) and (7) Violation of Bane Act (Civil Code 52.1). On 1/15/25, the Court granted Plaintiff's Motion for Sanctions, in part, and denied it, in part. (See 1/15/25 Minute Order). Due to Defendant's filing a request for dismissal of the cross-complaint with prejudice on the date of the hearing on the motion for sanctions, the Court found Plaintiff's request for the sanction of dismissal of the cross-complaint with prejudice to be moot. Id. The Court imposed monetary sanctions on Defendants' in the amount of \$2,810.00 and denied the remaining request for sanctions. Id.

On 11/18/25, Plaintiff filed and served a motion seeking an order permitting Plaintiff to conduct pretrial discovery into the financial condition of Bernard and Quentin, including but not limited to net worth, assets, liabilities, income, and any other evidence relevant to the amount of punitive damages, so that any punitive damage award ultimately returned by the trier of fact can meaningfully punish and deter in proportion to the gravity of Defendants' conduct. Bernard and Quentin opposed the motion and Plaintiff filed a reply to the opposition. On 3/18/26, the Court denied the motion. (See 3/18/26 Minute Order).

On 7/9/26, Plaintiff filed and served the instant motion

seeking an order bifurcating the trial as follows:

1. Phase One shall be tried first and shall include liability, affirmative defenses, causation, actual/compensatory damages, and whether Plaintiff has established entitlement to punitive or exemplary damages against any defendant, including whether any defendant acted with malice, oppression, or fraud under Civil Code 3294, and whether any exemplary damage predicate exists under Civil Code 3340.
2. Phase Two shall occur only if the trier of fact first returns a verdict awarding actual damages and making the required punitive/exemplary damage predicate findings. If Phase Two becomes necessary, the same trier of fact shall remain empaneled and shall hear the punitive/exemplary damages amount phase after completion of the targeted financial condition discovery. The jury shall not be discharged after Phase One unless Phase Two is unnecessary.
3. No evidence of any defendant's profits, net worth, wealth, or financial condition shall be admitted in Phase One unless independently relevant and otherwise admissible by order of the Court.
4. The Court shall reserve determination of the precise timing, manner, scope, and protective order terms governing any Phase Two production or presentation of financial condition evidence.
5. Plaintiff further moves for an order that, if the Phase One trier of fact returns a verdict awarding Plaintiff actual damages and finding, by clear and convincing evidence, that any defendant acted with malice, oppression, or fraud, or otherwise finding an exemplary damages predicate under Civil Code 3340, Plaintiff shall be permitted to conduct targeted, expedited financial condition discovery as to each such defendant for a period not to exceed thirty (30) calendar days before the punitive/exemplary damages amount phase. Such discovery shall be limited to documents and testimony sufficient to establish each such defendant's current profits, net worth, assets, liabilities, income, expenses, and overall ability to pay punitive or exemplary damages, subject to an appropriate protective order and further order of the Court.

Defendants have filed and served a Non-Opposition to the motion.

ANALYSIS

Civil Code 3295 provides:

“(a) The court may, for good cause, grant any defendant a protective order requiring the plaintiff to produce evidence of a prima facie case of liability for damages pursuant to Section 3294, prior to the introduction of evidence of:

(1) The profits the defendant has gained by virtue of the wrongful course of conduct of the nature and type shown by the evidence.

(2) The financial condition of the defendant.

(b) Nothing in this section shall prohibit the introduction of prima facie evidence to establish a case for damages pursuant to Section 3294.

(c) No pretrial discovery by the plaintiff shall be permitted with respect to the evidence referred to in paragraphs (1) and (2) of subdivision (a) unless the court enters an order permitting such discovery pursuant to this subdivision. However, the plaintiff may subpoena documents or witnesses to be available at the trial for the purpose of establishing the profits or financial condition referred to in subdivision (a), and the defendant may be required to identify documents in the defendant's possession which are relevant and admissible for that purpose and the witnesses employed by or related to the defendant who would be most competent to testify to those facts. Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294. Such order shall not be considered to be a determination on the

merits of the claim or any defense thereto and shall not be given in evidence or referred to at the trial.

(d) The

court shall, on application of any defendant, preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section

3294. Evidence of profit and financial condition shall be admissible only as to the defendant or defendants found to be liable to the plaintiff and to be guilty of malice, oppression, or fraud. Evidence of profit and financial condition shall be presented to the same trier of fact that found for the plaintiff and found one or more defendants guilty of malice, oppression, or fraud.

(e) No

claim for exemplary damages shall state an amount or amounts.

(f) The

amendments to this section made by Senate Bill No. 241 of the 1987-88 Regular Session apply to all actions in which the initial trial has not commenced prior to January 1, 1988." (emphasis added).

The request to bifurcate the trial into two phases with Phase 1 addressing liability, affirmative defenses, causation, actual/compensatory damages, and whether Plaintiff has established entitlement to punitive or exemplary damages against any defendant, including whether any defendant acted with malice, oppression, or fraud under Civil Code 3294, and whether any exemplary damage predicate exists under Civil Code 3340 is granted.

If the trier of fact returns a verdict awarding actual damages and making the required punitive/exemplary damage predicate findings, in Phase 2, the same jury will hear the punitive/exemplary damages amount phase. However, Plaintiff's request for an order allowing him to conduct targeted, expedited financial condition discovery as to each such defendant for a period not to exceed thirty (30) calendar days before the punitive/exemplary damages amount phase is denied. The Court finds that it would not be feasible to keep the same jury empaneled for an additional 30 days while Plaintiff conducts discovery regarding Defendants' financial condition.

Instead, Defendants are ordered to identify documents in their possession which are relevant and admissible for the purpose of establishing the profits or financial condition referred to in Civil Code 3295(a) and to identify the witnesses employed by or related to the Defendants who would be most competent to testify to those facts. See Civil Code 3295(c). Plaintiff may then subpoena documents or witnesses to be available during Phase 2 of the trial for the purpose of establishing the profits or financial condition referred to in Civil Code 3295(a), in the event Phase 2 of the trial is necessary.

CONCLUSION

The motion is granted, in part, and denied, in part.

The request to bifurcate the trial into two phases is granted. Phase 1 of the trial will address liability, affirmative defenses, causation, actual/compensatory damages, and whether Plaintiff has established entitlement to punitive or exemplary damages against any Defendant, including whether any Defendant acted with malice, oppression, or fraud under Civil Code 3294, and whether any exemplary damage predicate exists under Civil Code 3340.

If the trier of fact returns a verdict awarding actual damages and making the required punitive/exemplary damage predicate findings, in Phase 2, the same jury will hear the punitive/exemplary damages amount phase.

Within 30 days of the hearing on this motion, Defendants are ordered to identify documents in their possession which are relevant and admissible for the purpose of establishing the profits or financial condition referred to in Civil Code 3295(a) and to identify the witnesses employed by or related to the Defendants who would be most competent to testify to those facts. See Civil Code 3295(c). Plaintiff may then subpoena documents or witnesses to be available during Phase 2 of the trial for the purpose of establishing the profits or financial condition referred to in Civil Code 3295(a), in the event Phase 2 of the trial is necessary.

No evidence of any Defendant's profits, net worth, wealth, or financial condition shall be admitted in Phase 1 of the trial unless independently relevant and otherwise admissible by order of the Court.

The Court reserves determination of the precise timing, manner, scope, and protective order terms governing any Phase 2 production or presentation of financial condition evidence.

Plaintiff's request to conduct targeted, expedited financial condition discovery for a period not to exceed thirty (30) calendar days before the punitive/exemplary damages amount phase, if the trier of fact in Phase 1 returns a verdict awarding Plaintiff actual damages and finding, by clear and convincing evidence, that any Defendant acted with malice, oppression, or fraud, or otherwise finding an exemplary damages predicate under Civil Code 3340, is denied.